

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2301453

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CAROLYN BORDES, ET
AL

vs.

DEFENDANT: DAMIR STOSIC, ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: REOPEN EVIDENCE

RULING

The Motion to Reopen Evidence by plaintiffs Stephen and Carolyn Bordes (collectively “Plaintiffs”) seeking leave to admit into evidence: 1) certified records of the Marin County Property Tax Division showing payment of property taxes on the property located at 503 Sausalito Boulevard, Sausalito, California (the “Property”), authenticated through the Declaration of Long Truong, custodian of records; and 2) Trial Exhibit 109, is **GRANTED**.

Background

This matter came before the Court for trial on May 4, 6, and 7, 2026. At trial, plaintiff Stephen Bordes testified that Plaintiffs had timely paid all property taxes each year since 2011, and that testimony was not objected to or contradicted. Plaintiffs did not, however, introduce certified county tax records.

After reviewing the closing brief of defendants Pauli-Larsen Stosic and Damir Stosic (collectively “Defendants”), who argued that payment of taxes for adverse possession must be established by certified records of the county tax collector under Civil Code section 325(b), Plaintiffs’ counsel concluded that the oral testimony may be insufficient. Accordingly, pursuant to Code of Civil Procedure sections 128(a)(3) and 473, and Evidence Code section 320, Plaintiffs moved to reopen the evidence, or to reopen their case in chief to admit certified tax records authenticated through the declaration of Long Truong, custodian of records for the Marin County Property Tax Division, and Trial Exhibit 109, which had been marked for identification but not admitted.

Legal Standard

A trial court has broad discretion to reopen the evidence and to reopen a party's case in chief, at any time before the matter is submitted for decision, in the exercise of its inherent authority to control the order of proof and the conduct of the proceedings. (Code Civ. Proc., §§ 128, subd. (a)(3), 607; Evid. Code, § 320; *Horning v. Shilberg* (2005) 130 Cal.App.4th 197, 208–209; *Rosenfeld, Meyer & Susman v. Cohen* (1987) 191 Cal.App.3d 1035, 1052.) That discretion is grounded in the court's inherent authority to control the conduct of proceedings and the order of proof. Every court has power “[t]o provide for the orderly conduct of proceedings before it.” (Code Civ. Proc., § 128.) And “[e]xcept as otherwise provided by law, the court in its discretion shall regulate the order of proof.” (Evid. Code, § 320.)

Reopening may be granted on a showing of good cause, which requires an adequate excuse for the failure to produce the evidence at trial and a showing of diligence. (*Sanchez v. Bay General Hospital* (1981) 116 Cal.App.3d 776, 793; *In re Estate of Horman* (1968) 265 Cal.App.2d 796, 807.)

Discussion

The Court has Discretion to Reopen the Evidence and Finds Good Cause for the Same

Plaintiffs' motion is made before submission and before entry of any statement of decision or judgment in this case. Thus, this Court's broad, pre-submission standard governs and the more demanding standard applicable to newly discovered evidence on a motion for new trial, for instance, is not present. (See Code Civ. Proc., § 657, subd. (4).) Additionally, the Court finds good cause to reopen the evidence.

At trial, plaintiff Stephen Bordes testified, without objection and without contradiction, that Plaintiffs timely paid the property taxes on the Property each year. Plaintiffs' failure also to offer the certified Tax Records was the product of mistake and inadvertence, not a knowing or voluntary tactical decision. The Court credits counsel's explanation and finds this an adequate excuse for the nonproduction of the certified records at trial.

The Tax Records are material and are not merely cumulative in effect. Payment of taxes is an element of adverse possession that "shall be established by certified records of the county tax collector." (Civ. Code, § 325, subd. (b); *McLear-Gary v. Scott* (2018) 25 Cal.App.5th 145, 152.) The certified Tax Records go directly to that element and may affect the outcome on the merits. Receiving competent, material evidence on a dispositive issue serves the ends of justice. (*In re Estate of Horman*, supra, 265 Cal.App.2d at pp. 807–809.)

Moreover, Defendants are not unfairly prejudiced or surprised. The subject matter of the Tax Records, namely payment of the property taxes, was placed in issue at trial through testimony admitted without objection, and the Tax Records corroborate that testimony. Little or no additional trial time is required. The Court has also considered and rejects Defendants' contention that Plaintiffs' omission was a tactical decision. The Court finds the omission was inadvertent.

The Certified records of the Marin County Property Tax Division and the Declaration of Long Truong are Admissible

Defendants' objections to the Declaration of Long Truong and the tax records are OVERRULED. Defendants object to the entire Truong Declaration and the attached Tax Records as hearsay (Objection No. 1) and object to specific statements in the Declaration as lacking foundation, calling for speculation beyond the declarant's personal knowledge, and constituting hearsay (Objection Nos. 2 through 4). The Tax Records, however, are admissible over hearsay objections.

The Tax Records are admissible under the official-records exception to the hearsay rule. (Evid. Code, § 1280.) A writing recording an act, condition, or event is not made inadmissible by the hearsay rule if (a) the writing was made by and within the scope of duty of a public employee; (b) the writing was made at or near the time of the act, condition, or event; and (c) the sources of information and method and time of preparation were such as to indicate its trustworthiness. (Evid. Code, § 1280, subds. (a)–(c).) The Tax Records are records of the Marin County Property Tax Division reflecting the receipt and payment of property taxes on the Property, made by public employees in the course of their official duties, and the entries reflect payments made at or near the dates the taxes were due and paid.

Unlike the business-records exception (Evid. Code, § 1271), the official-records exception does not require a custodian or other qualified witness to testify to the identity of the record and its mode of preparation. The Court may admit an official record without such a witness where it takes judicial notice or where sufficient independent evidence shows the record was prepared in a manner assuring its trustworthiness, and it is not necessary that the person making the entry have personal knowledge of the transaction. (*Jazayeri v. Mao* (2009) 174 Cal.App.4th 301, 317–319; *People v. George* (1994) 30 Cal.App.4th 262, 273–274; *People v. Martinez* (2000) 22 Cal.4th 106, 128–129.) Defendants' Objection No. 1, that the Declaration and Tax Records are inadmissible because they are presented by declaration without the opportunity to cross-examine, is thus not well taken. A sponsoring witness is not required for their admission under section 1280.

The trustworthiness element is also satisfied. It is presumed that the official duty has been regularly performed (Evid. Code, § 664), and that presumption both supplies foundation for the official-records exception and shifts to the objecting party the burden of proving that the records are not trustworthy. (*People v. Martinez, supra*, 22 Cal.4th at pp. 129–130; *People v. George, supra*, 30 Cal.App.4th at p. 274.) The County Tax Collector is charged by statute with collecting property taxes and accounting for the sums collected and the Court may rely on the presumption that these duties were regularly performed. Defendants have offered no evidence to rebut the presumption of trustworthiness. The Court also takes judicial notice that property taxes in California are due and payable on prescribed dates each year and finds the recorded payment dates consistent with those obligations.

The foundation, speculation, and identification objections (Objection Nos. 2 through 4) are overruled for the same reasons. Because the official-records exception does not require personal knowledge of the underlying transaction by the person making the entry, the declarant's asserted lack of personal knowledge does not bar admission. (*Jazayeri v. Mao, supra*, 174 Cal.App.4th at pp. 318–319.) The Tax Records are adequately identified: they bear the stamp of the Marin County Tax Collector and identify the Property at 503 Sausalito Boulevard, Sausalito, California,

and Plaintiffs by name, and they are authenticated as certified copies of records in the legal custody of the Marin County Property Tax Division. (Evid. Code, §§ 1530, 1531.) A certified copy of a writing in the custody of a public entity is prima facie evidence of the existence and content of the writing.

In the alternative, and to the extent the Court were to require a sponsoring witness, Plaintiffs have offered to present the custodian of records to authenticate the Tax Records, with cross-examination limited to the scope of that direct testimony. However, because the Tax Records are admissible under section 1280 without a sponsoring witness, the Court need not require live testimony.

Accordingly, Plaintiffs' motion to reopen evidence is granted, Defendants' objections are overruled, and the proffered evidence is admitted. Defendants shall have a reasonable opportunity, on a schedule to be set by the Court, to offer rebuttal evidence directed solely to the reopened evidence and to be heard on any further matter arising from its admission.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0000350

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SARAH ELLISON

vs.

DEFENDANT: MARIN HEALTH
MEDICAL CENTER, ET AL

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO
INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM
2) MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

These matters are **continued to August 25, 2026 at 1:30 p.m. in Courtroom A** to allow the parties to participate in the Court's Discovery Facilitator Program pursuant to Civ. Local Rule 2.13.

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